

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400724	MARTIN vs COUNTY OF RIVERSIDE	MOTION TO COMPEL

Tentative Ruling:

Summary of Ruling:

The Court grants the motion and orders Defendant to produce the witnesses for deposition no later than September 30, 2026, consistent with the Court's directions at the IDC. Sanctions are denied.

Factual / Procedural Context:

This is an employment dispute. Plaintiff Hope Martin ("Plaintiff"), an African American Licensed Vocational Nurse III, worked for Defendant County of Riverside ("Defendant" or "County") for nearly 14 years before transferring to the Robert Presley Detention Center ("RPDC") in February 2021. (SAC ¶ 11.) During her time at RPDC, Plaintiff alleges she was subjected to mistreatment by both inmates and deputies, including racial epithets and verbal threats from inmates. (*Id.* at ¶ 14.) She further claims that deputies retaliated against her for filing complaints by failing to protect her, abandoning her, and making false complaints against her. (*Id.*) Plaintiff asserts that Defendant engaged in ongoing retaliatory conduct, such as leaving her unprotected and lodging false complaints. (*Id.* at ¶ 19.)

On 11/15/2022, Plaintiff received a Notice of Proposed Termination based on multiple alleged acts of misconduct, including improperly distributing inmate medications, failing to deescalate an inmate interaction, neglecting to escalate an inmate's complaint to an RN, and failing to respond to a "Man Down" call. (*Id.* at ¶¶ 15–18, 24.) On 12/5/2022, the County offered to demote Plaintiff to Licensed Vocational Nurse II in exchange for releasing all claims against the County. (*Id.* at ¶ 26.) When Plaintiff refused, the County terminated her employment on 5/23/2023. (*Id.*)

On 11/18/2024, Plaintiff filed her operative Second Amended Complaint ("SAC") against Defendant, asserting causes of action for (1) violation of Lab. Code § 1102.5; (2) harassment based on race; (3) discrimination based on race; (4) harassment based on color; (5) discrimination based on color; (6) retaliation in violation of FEHA; (7) failure to correct and remedy discrimination and harassment in violation of Gov. Code § 12940(K); and (8) IIED. On 2/24/25, the court sustained Defendant's demurrer to the 2nd, 4th and 8th causes of action without leave to amend. Trial is set for 12/4/26.

Plaintiff moves to compel the deposition of Defendant's employees (Mark Suarez, Andrew Pascoe, Terry Wade) and PMQ from HR. Defendant identified Suarez and Pascoe as individuals with knowledge of the allegations, while Wade made the ultimate decision to terminate. On 1/5/26, Plaintiff requested deposition dates but received no response. On 1/19/26, Plaintiff served deposition notices, but Defendant indicated that they were unavailable. On 2/10/26, the court held an IDC where dates

would be provided by 3/31/26. The parties ultimately agreed on dates, but Defendant's counsel indicated he was no longer available for 4/10/26 for Pascoe. Plaintiff again asked for dates but Defendant refused to proceed with depositions absent resolution of issues related to the deposition of Jonelle Morris—which has no relevance to these depositions. She points out that Defendant did not move for a protective order and has failed to provide dates. Plaintiff requests sanctions of \$1,486.25 against Defendant and its counsel.

In opposition, Defendant contends that it has never refused to provide the witnesses but has scheduling conflicts. On 5/15/26, Defendant indicated it would provide the witnesses for late June and July 2026, but Plaintiff instead filed this motion, even though an IDC was set for 7/17/26. At that IDC, the court indicated that all depositions be completed by 9/30/26. It contends it will comply with the court's order. It argues that there is no basis for sanctions.

In reply, Plaintiff contends that the motion was timely served and filed with the court, but that the original motion was rejected by the court and re-filed. She argues the motion is not moot because the court did not deny Plaintiff's requested relief at the IDC and issued an OSC. She contends that Defendant still has not produced the witnesses or provided dates. She contends sanctions are still appropriate.

Analysis

Service of a proper deposition notice is sufficient to compel a party to appear, testify and produce records in their possession without a subpoena. (Code Civ. Proc., § 2025.280(a).) Section 2025.450(a) states: "If after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (emphasis added.) The parties are required to meet and confer, or in the case of a non-appearance, the moving party inquired about the non-appearance. (*Id.* at § 2025.450(b)(2).)

An objection is based on any error or irregularity in a deposition notice that does not comply with section 2025.210 et seq. (*Id.* at § 2025.410(a).) These include service, location of the deposition, time limits, etc. A party may challenge the production via an inadequate description or as unjustly burdensome. (*Id.* at § 2025.410(a), (c).) Any other challenge such as privilege, relevance, etc. may be challenged via protective order or raised at the deposition. (Weil & Brown, California Practice Guide: Civil Procedure Before Trial § 8:531 (Rutter Group 2026).) Serving an objection is not a substitute for a motion for protective order. (See *Snyder v. Superior Court* (1970) 9 Cal.App.3d 579, 586 (applying former Civ. Proc. Code, § 2021).) Or, Defendant could have filed a motion to quash. (*Id.* at § 2025.410(c).)

Here, this appears to be scheduling issues between the parties, particularly with both parties not responding to each other's inquiries. This appears to be moot because at the last IDC, the court directed witnesses to be produced by September 30, 2026. Even so, a formal order granting the motion does not preclude the parties from ensuring compliance, rather it requires compliance and formalizes the September 30, 2026 deadline to which the parties agreed at the July 17, 2026 informal discovery conference. The motion is granted and Defendants shall produce the witnesses for deposition no later than September 30, 2026

As for sanctions, because these deposition issues were resolved at the IDC, sanctions are inappropriate at this time.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601725	LUA vs PLATINUM SALES AND SERVICES, INC.	DEMURRER ON COMPLAINT

Tentative Ruling:

The hearing on the demurrer and motion to strike is continued to a date agreed upon by the Court and parties.

Defendant is ordered to ***meet and confer in person, or via phone or videoconference*** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrers. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 15 days before the continued hearing date set above do one of the following:

- (1) vacate the hearing on the demurrer and motion to strike, and file an Answer;
- (2) file with the court a declaration stating the parties have agreed that Plaintiff will file a stipulation and amended complaint before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and motion to strike and supporting memorandum of points and authorities that the parties were unable to resolve.

(C.C.P., §§ 430.41(a)(3), 435.5(a)(3).)

No further briefing will be allowed.